

International Law — the instruments and where they came up

Legal instruments mentioned in the Foundations of International Law lectures (IREWI, 030721), arranged by instrument and, within it, BY ARTICLE: first the official text of the article (the source is named under each instrument), then every slide where it came up and the sentence from the course. The exam is open-book and source-based, so what counts is knowing WHICH ARTICLE OF WHICH TREATY settles the point.

Contents

1. Charter of the United Nations (11 articles · 53 mentions)
2. Statute of the International Court of Justice (4 articles · 12 mentions)
3. Vienna Convention on the Law of Treaties (VCLT, 1969) (17 articles · 44 mentions)
4. Vienna Convention on Diplomatic Relations (1961) (1 mention)
5. ILC Articles on State Responsibility (ARSIWA, 2001) (7 mentions)
6. Montevideo Convention on the Rights and Duties of States (1933) (1 article · 2 mentions)
7. UN Convention on the Law of the Sea (UNCLOS, 1982) (1 mention)
8. International Covenant on Civil and Political Rights (ICCPR) (2 mentions)
9. International Covenant on Economic, Social and Cultural Rights (ICESCR) (1 mention)
10. Universal Declaration of Human Rights (1948) (2 mentions)
11. European Convention on Human Rights (ECHR) (3 articles · 8 mentions)
12. American Convention on Human Rights (2 mentions)
13. African Charter on Human and Peoples' Rights (2 mentions)
14. Convention against Torture (UN-CAT) (1 mention)
15. Geneva Conventions and Additional Protocols (3 mentions)
16. Rome Statute of the International Criminal Court (1 article · 4 mentions)
17. Treaty on the Non-Proliferation of Nuclear Weapons (NPT) (2 mentions)
18. Comprehensive Nuclear-Test-Ban Treaty (CTBT) (2 mentions)
19. Paris Agreement (2015) (1 article · 3 mentions)
20. Liability Convention (space, 1972) (3 mentions)
21. Friendly Relations Declaration (GA Res. 2625) (3 mentions)
22. Austrian State Treaty (1955) (1 mention)
23. Unilateral declarations (Ihlen, Maroua, Yaoundé II, Claims Settlement) (5 mentions)
24. GATT / WTO agreements (8 mentions)
25. ILC Draft Articles (further texts) (2 articles · 4 mentions)

1. Charter of the United Nations

Article texts: un.org, full text of the UN Charter

Art. 1

The Purposes of the United Nations are: 1. To maintain international peace and security, and to that end: to take effective collective measures for the prevention and removal of threats to the peace, and for the suppression of acts of aggression or other breaches of the peace, and to bring about by peaceful means, and in conformity with the principles of justice and international law, adjustment or settlement of international disputes or situations which might lead to a breach of the peace; 2. To develop friendly relations among nations based on respect for the principle of equal rights and self-determination of peoples, and to take other appropriate measures to strengthen universal peace; 3. To achieve international co-operation in solving international problems of an economic, social, cultural, or humanitarian character, and in promoting and encouraging respect for human rights and for fundamental freedoms for all without distinction as to race, sex, language, or religion; and 4. To be a centre for harmonizing the actions of nations in the attainment of these common ends.

IL11 · slide 2 · Self-determination in outline

It entered the UN Charter as a purpose in Article 1(2) and Article 55, and was written as the common Article 1 of both 1966 Covenants — which is what turned it from a political principle into a treaty right.

Art. 1(2)

2. To develop friendly relations among nations based on respect for the principle of equal rights and self-determination of peoples, and to take other appropriate measures to strengthen universal peace;

IL11 · slide 2 · Self-determination in outline

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IL11 · slide 2 · Self-determination in outline

In Articles 1(2) and 55 of the UN Charter as a purpose of the Organization, and as the common Article 1 of both 1966 Covenants, which made it a treaty right.

Art. 2(4)

4. All Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the Purposes of the United Nations.

IL10 · slide 6 · Article 2(4) dissected

Does that breach Article 2(4)?

IL10 · slide 6 · Article 2(4) dissected

'Force' in Article 2(4) means military or armed force; economic pressure falls outside it.

IL10 · slide 6 · Article 2(4) dissected

Name four forms of conduct covered by the prohibition in Article 2(4).

IL10 · slide 15 · Responsibility to protect

R2P creates no new exception to Article 2(4).

IL10 · slide 19 · Where the line runs, with examples

Substance: no intervening in another state's internal affairs, and no exerting pressure to obtain advantages to which one is not entitled — all BELOW the threshold of armed force, which is Article 2(4)'s territory.

Art. 4(1)

1. Membership in the United Nations is open to all other peace-loving states which accept the obligations contained in the present Charter and, in the judgment of the Organization, are able and willing to carry out these obligations.

IL08 · slide 2 · Admission to the UN: the conditions

Article 4(1) sets four conditions and they are cumulative: the applicant must be a STATE, must be PEACE-LOVING, must ACCEPT the obligations of the Charter, and must — in the judgment of the Organization — be ABLE AND WILLING to carry them out.

Art. 6

A Member of the United Nations which has persistently violated the Principles contained in the present Charter may be expelled from the Organization by the General Assembly upon the recommendation of the Security Council. Chapter III: Organs

IL08 · slide 4 · Leaving, and being thrown out

Expulsion may be provided for where a member persistently violates its obligations, as in Article 6 of the Charter, but in practice organizations reach for softer tools: refusing to accept credentials, or suspending voting rights for non-payment of contributions under Article 19.

Art. 13

1. The General Assembly shall initiate studies and make recommendations for the purpose of: (a) promoting international co-operation in the political field and encouraging the progressive development of international law and its codification; (b) promoting international co-operation in the economic, social, cultural, educational, and health fields, and assisting in the realization of human rights and fundamental freedoms for all without distinction as to race, sex, language, or religion.
2. The further responsibilities, functions and powers of the General Assembly with respect to matters mentioned in paragraph 1 (b) above are set forth in Chapters IX and X.

IL04 · slide 18 · Codification and the International Law Commission

Article 13 of the UN Charter gives the General Assembly the task of encouraging the progressive development of international law and its codification, and the body that does the work is the International Law Commission — a subsidiary organ of the General Assembly created by Resolution 174 (II) in 1947, with 34 members elected for five-year terms and representing the main legal systems, distributed by region.

IL04 · slide 18 · Codification and the International Law Commission

Article 13 UN Charter mandates both.

Art. 33(1)

1. The parties to any dispute, the continuance of which is likely to endanger the maintenance of international peace and security, shall, first of all, seek a solution by negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements, or other peaceful means of their own choice.

IL11b · slide 2 · Article 33(1) and consensualism

What exactly does Article 33(1) UN Charter oblige disputing states to do?

Art. 55

With a view to the creation of conditions of stability and well-being which are necessary for peaceful and friendly relations among nations based on respect for the principle of equal rights and self-determination of peoples, the United Nations shall promote: 1. higher standards of living, full employment, and conditions of economic and social progress and development; 2. solutions of international economic, social, health, and related problems; and international cultural and educational cooperation; and 3. universal respect for, and observance of, human rights and fundamental freedoms for all without distinction as to race, sex, language, or religion.

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Art. 55(c)

(text at Art. 55 above)

IL11 · slide 5 · The idea of human rights

Minority protection after the First World War was the first breach; the comprehensive approach came after the Second, in Articles 55(c) and 56 of the Charter.

IL11 · slide 5 · The idea of human rights

Articles 55(c) and 56 of the Charter made respect for human rights a matter of international concern and obligation.

Art. 71

The Economic and Social Council may make suitable arrangements for consultation with non-governmental organizations which are concerned with matters within its competence. Such arrangements may be made with international organizations and, where appropriate, with national organizations after consultation with the Member of the United Nations concerned.

IL06 · slide 37 · NGOs

Article 71 of the UN Charter allows the Economic and Social Council to make arrangements for consultation with non-governmental organizations, and Resolution 288 B (X) of 1950 supplies the definition by exclusion: any international organization which is NOT established by international agreement is a non-governmental organization for those purposes.

IL08 · slide 38 · Review: consultative status

The basis is Article 71 of the Charter: ECOSOC may make arrangements for consultation with non-governmental organizations.

IL08 · slide 38 · Review: consultative status

Access under Article 71 UN Charter — attendance at ECOSOC meetings, written statements and, in some categories, oral interventions.

Art. 103

In the event of a conflict between the obligations of the Members of the United Nations under the present Charter and their obligations under any other international agreement, their obligations under the present Charter shall prevail.

IL02 · slide 5 · Conflict of norms: the three rules

And Article 103 of the UN Charter adds a rule of its own: where obligations under the Charter conflict with obligations under any other international agreement, the Charter prevails.

IL02 · slide 5 · Conflict of norms: the three rules

The Charter obligation, under Article 103 of the UN Charter: in the event of a conflict with obligations under any other international agreement, Charter obligations prevail.

IL02 · slide 45 · Interpretation as a diagram

Systematic interpretation splits into Article 31(2) — treaty text with preamble and attachments, plus every agreement or document by the parties made on the occasion of the conclusion — and Article 31(3) — subsequent agreements, uniform subsequent practice by all the parties, and any relevant rules of international law between them, with Article 103 of the UN Charter given as the example.

No specific article

IL01 · slide 26 · A decision of an international organization: SC Resolution 1373

Security Council Resolution 1373 (2001), adopted three weeks after 11 September, is introduced by the formula 'Acting under Chapter VII of the Charter' and continues with 'Decides that all States shall' — not 'recommends'.

IL02 · slide 5 · Conflict of norms: the three rules

A state's obligation under a bilateral treaty conflicts with an obligation under the UN Charter.

IL02 · slide 6 · Decisions of international organizations: SC Resolution 1973

The extract shows the two formulas that matter: 'Determining that the situation ... continues to constitute a threat to international peace and security' and 'Acting under Chapter VII of the Charter'.

IL02 · slide 6 · Decisions of international organizations: SC Resolution 1973

A determination that the situation constitutes a threat to international peace and security, and acting under Chapter VII of the Charter.

IL02 · slide 46 · A worked example: the VCCR preamble

This one is the preamble of the Vienna Convention on Consular Relations 1963 — the parties recall the purposes of the UN Charter on sovereign equality and friendly relations and state their belief that a convention on consular relations would contribute to friendly relations among nations irrespective of differing constitutional and social systems.

IL04 · slide 14 · Nicaragua: what the case settled

For the law of custom the judgment did four things: it confirmed the two-element theory; it treated *opinio iuris* as particularly important, arguably more so than practice; it accepted that *opinio iuris* may be found in General Assembly resolutions; and it concluded that the prohibition of the use of force, the prohibition of intervention and state sovereignty are rules of customary international law — which mattered because a US reservation kept the Court from applying the UN Charter itself.

IL04 · slide 14 · Nicaragua: what the case settled

It mattered because the Court could not apply the UN Charter in that case, so the customary parallel rules carried the judgment.

IL07 · slide 9 · The three implied-powers opinions

Each found a power the Charter does not mention.

IL07 · slide 11 · Bernadotte: the question

The difficulty was that the Charter contains no explicit authorization to do so.

IL07 · slide 12 · Bernadotte: the holding

The Court reasoned from function to power: the UN needs extensive legal personality to achieve the objectives of the Charter, and therefore has the right to claim reparation in its own name AND the right to claim for the victim and his relatives.

IL07 · slide 12 · Bernadotte: the holding

This is functional protection — the organization's counterpart to a state's diplomatic protection — and it is the origin of the implied powers doctrine, since neither right is written in the Charter.

IL07 · slide 12 · Bernadotte: the holding

The right to claim reparation in its own name and the right to claim for the victim and his relatives — reasoning that the UN must have the personality and powers necessary to achieve the Charter's objectives, even where the Charter does not say so expressly.

IL07 · slide 14 · Peacekeeping as an implied power

The UN Charter nowhere mentions peacekeeping operations.

IL07 · slide 14 · Peacekeeping as an implied power

On what legal basis do UN peacekeeping operations rest, given that the Charter does not mention them?

IL07 · slide 19 · One state one vote, and its exceptions

The veto of the five permanent members of the Security Council — formally an exception written into the Charter.

IL08 · slide 2 · Admission to the UN: the conditions

The applicant must be a state, peace-loving, must accept the Charter obligations, and must — in the judgment of the Organization — be able and willing to carry them out.

IL08 · slide 9 · The United Nations in outline

Its main purpose is maintaining peace, pursued through two routes that map onto two chapters of the Charter:

peaceful settlement of disputes under Chapter VI and the system of collective security under Chapter VII.

IL08 · slide 9 · The United Nations in outline

Which two chapters of the UN Charter carry the Organization's main purpose, and what does each contain?

IL08 · slide 10 · The General Assembly's competences

All 193 members sit here, and the Charter gives it six kinds of power.

IL08 · slide 10 · The General Assembly's competences

Which article of the Charter grounds the General Assembly's work on codification, and which body does that work?

IL08 · slide 14 · ECOSOC and the UN family

The distinction matters because specialized agencies are brought into relationship with the UN by agreement under the Charter, while related organizations are not.

IL08 · slide 39 · Review: determining legal personality

By inference from its functions, organs and powers — the objective approach taken by the ICJ in the *Bernadotte* opinion, where the UN's personality followed from what the Charter required it to do.

IL08 · slide 40 · Case: cocaine at the airport

The UN's personality does not depend on being written into the Charter: the ICJ inferred it from the Organization's functions in *Bernadotte*, and staff privileges rest on the Convention on Privileges and Immunities and the headquarters agreement in any event.

IL10 · slide 2 · The Charter as a constitution

The table asks what a constitution does and finds each function in the Charter.

IL10 · slide 2 · The Charter as a constitution

In what sense is the UN Charter a constitution in the material sense?

IL10 · slide 4 · How the prohibition of force was built

Then three steps: the League of Nations in 1919 imposed a relative prohibition with a three-month cooling-off period; the Briand-Kellogg Pact of 1928 declared war no means of policy; and the UN Charter finally imposed a comprehensive prohibition of the use of force with exactly two exceptions — self-defence and collective security.

IL10 · slide 4 · How the prohibition of force was built

UN Charter: a comprehensive prohibition with two exceptions, self-defence and collective security.

IL10 · slide 13 · Peacekeeping: legal basis and conditions

Implied powers (Certain Expenses), an *maius ad minus* argument from Chapter VII, and customary law and the practice of the Organization — the Charter itself does not mention peacekeeping.

IL10 · slide 15 · Responsibility to protect

Paragraph 139 places a responsibility on the international community: first to use peaceful means under Chapters VI and VIII, and then, should peaceful means be inadequate and national authorities be MANIFESTLY FAILING, to take collective action through the SECURITY COUNCIL, in accordance with the Charter including Chapter VII, case by case.

IL10 · slide 15 · Responsibility to protect

Paragraph 139 channels collective action through the Security Council in accordance with the Charter.

IL11 · slide 7 · Sources I: the Declaration and the Covenants

The Universal Declaration of 1948 is a General Assembly resolution and per se not legally binding — with two arguments for binding force anyway: that it has become customary law, and that it is an authentic interpretation of the Charter.

IL11 · slide 7 · Sources I: the Declaration and the Covenants

That its content has passed into customary international law, and that it constitutes an authentic interpretation of the human rights provisions of the UN Charter.

IL11 · slide 8 · Sources II: specific and regional treaties

And the Council of Europe's specialised instruments: the European Social Charter 1961, the Charter of Regional and Minority Languages 1992, the Framework Convention on National Minorities 1995 and the Istanbul Convention on domestic violence 2011.

2. Statute of the International Court of Justice

Article texts: icj-cij.org, Statute of the ICJ

Art. 38

1. The Court, whose function is to decide in accordance with international law such disputes as are submitted to it, shall apply: 1. international conventions, whether general or particular, establishing rules expressly recognized by the contesting states; 2. international custom, as evidence of a general practice accepted as law; 3. the general principles of law recognized by civilized nations; 4. subject to the provisions of Article 59, judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law. 2. This provision shall not prejudice the power of the Court to decide a case *ex aequo et bono*, if the parties agree thereto.

PROCEDURE

IL01 · slide 24 · Article 38 of the ICJ Statute

The slide quotes Article 38 of the Statute of the International Court of Justice and divides it graphically: paragraphs (a), (b) and (c) are boxed together and labelled formal sources — international conventions, international custom and general principles of law.

IL01 · slide 24 · Article 38 of the ICJ Statute

Are judicial decisions a source of international law under Article 38 of the ICJ Statute?

IL01 · slide 25 · Five sources — and which are not in Article 38

Name two sources of international law that are not listed in Article 38 of the ICJ Statute.

IL02 · slide 2 · Article 38 ICJ Statute, quoted in full

Which paragraph of Article 38 ICJ Statute deals with treaties, and how does it describe them?

IL10 · slide 2 · The Charter as a constitution

Law-making: Article 38 of the ICJ Statute.

IL10 · slide 2 · The Charter as a constitution

It supplies principles and values (Arts 1-2), an institutional structure (the principal organs), law-making (via Art 38 ICJ Statute), law enforcement (Chapter VII), and a hierarchy of norms (Art 103, Charter obligations prevailing over other agreements).

Art. 38(1)(c)

1. The Court, whose function is to decide in accordance with international law such disputes as are submitted to it, shall apply:

IL05 · slide 4 · What general principles are and what they are for

The phrase 'civilized nations' in Article 38(1)(c) is today regarded as an embarrassing relic and is read as 'the principal legal systems of the world'.

IL05 · slide 4 · What general principles are and what they are for

How is the phrase 'recognized by civilized nations' in Article 38(1)(c) understood today?

Art. 38(1)(d)

(text at Art. 38(1)(c) above)

IL05 · slide 23 · Article 38(1)(d) read with Article 59

Article 38(1)(d) admits judicial decisions and teachings as subsidiary means 'subject to the provisions of Article 59'; Article 59 then provides that the decision of the Court has no binding force except between the parties and in respect of that particular case.

IL05 · slide 23 · Article 38(1)(d) read with Article 59

How do Articles 38(1)(d) and 59 of the ICJ Statute interact?

IL05 · slide 23 · Article 38(1)(d) read with Article 59

Article 38(1)(d) admits judicial decisions as subsidiary means, but expressly 'subject to Article 59', under which a decision binds only the parties in that case — so case law informs but never binds generally.

Art. 59

The decision of the Court has no binding force except between the parties and in respect of that particular case.

IL05 · slide 21 · Subsidiary means: what they are

Decisions of international and national courts and tribunals — with the crucial caveat that Article 59 of the ICJ Statute precludes *stare decisis*.

IL05 · slide 23 · Article 38(1)(d) read with Article 59

Article 38(1)(d) admits judicial decisions and teachings as subsidiary means 'subject to the provisions of Article 59';

Article 59 then provides that the decision of the Court has no binding force except between the parties and in respect of that particular case.

IL05 · slide 23 · Article 38(1)(d) read with Article 59

Article 38(1)(d) admits judicial decisions as subsidiary means, but expressly 'subject to Article 59', under which a decision binds only the parties in that case — so case law informs but never binds generally.

3. Vienna Convention on the Law of Treaties (VCLT, 1969)

Article texts: legal.un.org (ILC), Vienna Convention 1969

Art. 7(1)

1. A person is considered as representing a State for the purpose of adopting or authenticating the text of a treaty or for the purpose of expressing the consent of the State to be bound by a treaty if: (a) he produces appropriate full powers; or (b) it appears from the practice of the States concerned or from other circumstances that their intention was to consider that person as representing the State for such purposes and to dispense with full powers. 4

IL02 · slide 20 · Full powers under Article 7(1) VCLT

Under Article 7(1) VCLT, how can a person be treated as representing a state without producing full powers?

Art. 7(2)

2. In virtue of their functions and without having to produce full powers, the following are considered as representing their State: (a) Heads of State, Heads of Government and Ministers for Foreign Affairs, for the purpose of performing all acts relating to the conclusion of a treaty; (b) heads of diplomatic missions, for the purpose of adopting the text of a treaty between the accrediting State and the State to which they are accredited; (c) representatives accredited by States to an international conference or to an international organization or one of its organs, for the purpose of adopting the text of a treaty in that conference, organization or organ.

IL02 · slide 23 · Cameroon v. Nigeria: why the Head of State binds fully

How far does a Head of State's ex officio authority reach under Article 7(2) VCLT, according to Cameroon v.

Art. 7(2)(a)

(text at Art. 7(2) above)

IL02 · slide 21 · Full powers in virtue of a person's functions (Art 7(2) VCLT)

The Head of State, the Head of Government and the Minister of Foreign Affairs (Article 7(2)(a) VCLT).

Art. 18

Obligation not to defeat the object and purpose of a treaty prior to its entry into force A State is obliged to refrain from acts which would defeat the object and purpose of a treaty when: (a) it has signed the treaty or has exchanged instruments constituting the treaty subject to ratification, acceptance or approval, until it shall have made its intention clear not to become a party to the treaty; or (b) it has expressed its consent to be bound by the treaty, pending the entry into force of the treaty and provided that such entry into force is not unduly delayed.

IL02 · slide 29 · Treaties requiring ratification: five stages

That interim duty is Article 18 VCLT and it is a favourite exam trap.

IL02 · slide 29 · Treaties requiring ratification: five stages

It is not yet bound by the treaty's substance, but it must refrain from acts that would defeat the object and purpose of the treaty until it makes its intention clear (Art 18 VCLT).

Art. 19

Formulation of reservations A State may, when signing, ratifying, accepting, approving or acceding to a treaty, formulate a reservation unless: (a) the reservation is prohibited by the treaty; (b) the treaty provides that only specified reservations, which do not include the reservation in question, may be made; or (c) in cases not falling under subparagraphs (a) and (b), the reservation is incompatible with the object and purpose of the treaty.

IL02 · slide 56 · When a reservation is prohibited (Art 19 VCLT)

Name the three grounds on which Article 19 VCLT prohibits a reservation.

IL02 · slide 58 · Saudi Arabia's reservation to CEDAW

Why is a reservation subordinating a human rights treaty to 'the norms of Islamic law' problematic under Article 19 VCLT?

Art. 19(c)

(text at Art. 19 above)

IL02 · slide 56 · When a reservation is prohibited (Art 19 VCLT)

No — Article 19(c) VCLT: a reservation incompatible with the object and purpose of the treaty is prohibited even where the treaty says nothing about reservations.

Art. 20(5)

5. For the purposes of paragraphs 2 and 4 and unless the treaty otherwise provides, a reservation is considered to have been accepted by a State if it shall have raised no objection to the reservation by the end of a period of twelve months after it was notified of the reservation or by the date on which it expressed its consent to be bound by the treaty, whichever is later.

IL02 · slide 59 · The legal effect of a reservation: four reactions

Tacit acceptance under Article 20(5) VCLT.

Art. 21(3)

3. When a State objecting to a reservation has not opposed the entry into force of the treaty between itself and the reserving State, the provisions to which the reservation relates do not apply as between the two States to the extent of the reservation.

IL02 · slide 59 · The legal effect of a reservation: four reactions

The treaty applies between them, except that Article 5 does not apply as between A and B to the extent of the reservation (Art 21(3) VCLT).

IL02 · slide 60 · Austria's objection to the Saudi reservation

The Convention is in force between the two states; the provisions covered by the reservation do not apply between them to the extent of the reservation (Art 21(3) VCLT).

Art. 24(2)

2. Failing any such provision or agreement, a treaty enters into force as soon as consent to be bound by the treaty has been established for all the negotiating States.

IL02 · slide 37 · Entry into force — Article 24 VCLT

As soon as consent to be bound has been established for all the negotiating states (Art 24(2) VCLT).

Art. 26

"Pacta sunt servanda" Every treaty in force is binding upon the parties to it and must be performed by them in good faith.

IL02 · slide 41 · What entry into force triggers: validity

Article 26 VCLT — pacta sunt servanda: every treaty in force binds the parties and must be performed in good faith.

IL02 · slide 41 · What entry into force triggers: validity

State the rule of Article 26 VCLT in its Latin name and in substance.

Art. 27

Internal law and observance of treaties A party may not invoke the provisions of its internal law as justification for its failure to perform a treaty. This rule is without prejudice to article 46.

IL02 · slide 41 · What entry into force triggers: validity

Article 27 VCLT: internal law may not be invoked as justification for failure to perform.

Art. 31

General rule of interpretation 1. A treaty shall be interpreted in good faith in accordance with the ordinary meaning to be given to the terms of the treaty in their context and in the light of its object and purpose. 2. The context for the purpose of the interpretation of a treaty shall comprise, in addition to the text, including its preamble and annexes: (a) any agreement relating to the treaty which was made between all the parties in connection with the conclusion of the treaty; (b) any instrument which was made by one or more parties in connection with the conclusion of the treaty and accepted by the other parties as an instrument related to the treaty. 3. There shall be taken into account, together with the context: 12 (a) any subsequent agreement between the parties regarding the interpretation of the treaty or the application of its provisions; (b) any subsequent practice in the application of the treaty which establishes the agreement of the parties regarding its interpretation; (c) any relevant rules of international law applicable in the relations between the parties. 4. A special meaning shall be given to a term if it is established that the parties so intended.

IL02 · slide 44 · Article 31 VCLT: the general rule

Is the ordinary meaning of the words the primary method of treaty interpretation under Article 31 VCLT?

IL05 · slide 19 · How a unilateral declaration is interpreted

Contrast this with treaty interpretation under Article 31 VCLT, where no such restrictive presumption exists — the

difference is that nobody gave anything in return here.

IL05 · slide 19 · How a unilateral declaration is interpreted

Article 31 VCLT contains no such restrictive presumption.

IL10 · slide 10 · Collective security: the Council's competence

Note the interpretive point on the slide: reading Council resolutions is not the same exercise as reading a treaty under Article 31 VCLT — literal and historical interpretation carry more weight.

Art. 31(2)

2. The context for the purpose of the interpretation of a treaty shall comprise, in addition to the text, including its preamble and annexes: (a) any agreement relating to the treaty which was made between all the parties in connection with the conclusion of the treaty; (b) any instrument which was made by one or more parties in connection with the conclusion of the treaty and accepted by the other parties as an instrument related to the treaty.

IL02 · slide 44 · Article 31 VCLT: the general rule

What counts as 'context' under Article 31(2) VCLT?

Art. 31(3)

3. There shall be taken into account, together with the context: (a) any subsequent agreement between the parties regarding the interpretation of the treaty or the application of its provisions; (b) any subsequent practice in the application of the treaty which establishes the agreement of the parties regarding its interpretation; (c) any relevant rules of international law applicable in the relations between the parties.

IL02 · slide 45 · Interpretation as a diagram

Under Article 31(3) VCLT, whose subsequent practice counts?

Art. 46

Provisions of internal law regarding competence to conclude treaties 1. A State may not invoke the fact that its consent to be bound by a treaty has been expressed in violation of a provision of its internal law regarding competence to conclude treaties as invalidating its consent unless that violation was manifest and concerned a rule of its internal law of fundamental importance. 2. A violation is manifest if it would be objectively evident to any State conducting itself in the matter in accordance with normal practice and in good faith.

IL02 · slide 22 · Cameroon v. Nigeria: Article 46 VCLT, the rule

Only if the violation was manifest and concerned a rule of internal law of fundamental importance (Art 46 VCLT).

Art. 46(1)

1. A State may not invoke the fact that its consent to be bound by a treaty has been expressed in violation of a provision of its internal law regarding competence to conclude treaties as invalidating its consent unless that violation was manifest and concerned a rule of its internal law of fundamental importance.

IL02 · slide 22 · Cameroon v. Nigeria: Article 46 VCLT, the rule

The rule is Article 46(1) VCLT: a state may NOT invoke the fact that its consent was expressed in violation of its internal law on competence to conclude treaties — unless that violation was manifest and concerned a rule of internal law of fundamental importance.

Art. 46(2)

2. A violation is manifest if it would be objectively evident to any State conducting itself in the matter in accordance with normal practice and in good faith.

IL02 · slide 22 · Cameroon v. Nigeria: Article 46 VCLT, the rule

What is the test for a 'manifest' violation under Article 46(2) VCLT?

No specific article

IL02 · slide 8 · The twelve questions about a treaty

This wheel is the structure of the whole lecture and the best case-solving checklist you will get: 1 legal basis, 2 scope of application of the VCLT, 3 treaty-making power, 4 adoption, 5 entry into force, 6 interpretation, 7 scope of application, 8 treaties and third states, 9 modification, 10 reservations, 11 invalidity, 12 termination and suspension.

IL02 · slide 8 · The twelve questions about a treaty

Legal basis; scope of application of the VCLT; treaty-making power; adoption; entry into force; interpretation; scope of application; treaties and third states; modification; reservations; invalidity; termination and suspension.

IL02 · slide 9 · Definition of a treaty

Note also that this general definition says 'or subjects of international law', so it is wider than the VCLT's own definition on the next slides.

IL02 · slide 10 · The VCLT: dates that matter

The law of treaties is codified in the Vienna Convention on the Law of Treaties of 1969 — and the callout on the slide warns you that 1969 is the date of adoption, not of entry into force.

IL02 · slide 10 · The VCLT: dates that matter

The VCLT is called the 'Vienna Convention of 1969'.

IL02 · slide 11 · Who is party to the VCLT

The lesson is practical: in a case involving a red or yellow state you cannot simply apply the VCLT as a treaty, and you must fall back on customary law — which is exactly what slide 13 says.

IL02 · slide 11 · Who is party to the VCLT

Why does it matter, in a problem question, whether the states involved are parties to the VCLT?

IL02 · slide 11 · Who is party to the VCLT

Because the VCLT binds as a treaty only its parties.

IL02 · slide 12 · Checklist position: scope of application of the VCLT

The wheel again, now with item 2 highlighted — the question whether the VCLT applies at all to the agreement in front of you.

IL02 · slide 13 · When the VCLT itself applies

The general definition of a treaty on slide 9 is wider than the VCLT's own reach.

IL02 · slide 13 · When the VCLT itself applies

In practice the two sets of rules largely coincide, because most of the VCLT codifies custom.

IL02 · slide 13 · When the VCLT itself applies

What are the two additional requirements for the VCLT itself to apply, and what happens when they are not met?

IL02 · slide 13 · When the VCLT itself applies

Does the VCLT 1969 apply?

IL02 · slide 38 · The VCLT's own entry-into-force clause (Art 84)

This is why the VCLT, adopted in 1969, only entered into force in 1980.

IL02 · slide 39 · Objective and subjective entry into force

The table compares four treaties — VCLT, UNCLOS, UN-CAT and the Paris Agreement — along the same rows, and its purpose is one distinction.

IL02 · slide 39 · Objective and subjective entry into force

A state that ratified early waits for the threshold: Austria ratified the VCLT on 30.04.1979 but was bound only from 27.01.1980.

IL02 · slide 39 · Objective and subjective entry into force

Austria ratified the VCLT in April 1979 but was bound from 27 January 1980.

IL02 · slide 70 · The checklist, closed

Use it as the skeleton for any treaty problem: legal basis, scope of the VCLT, treaty-making power, adoption, entry into force, interpretation, scope of application, third states, modification, reservations, invalidity, termination.

IL07 · slide 15 · Treaties concluded by organizations

Because the 1969 VCLT covers only treaties between states, a second convention was drafted in 1986 for treaties between states and IOs and between IOs.

IL07 · slide 15 · Treaties concluded by organizations

The 1986 Vienna Convention (VCLT II) — but it has not entered into force for lack of the required 35 ratifications, so its rules apply only as customary law.

4. Vienna Convention on Diplomatic Relations (1961)

No specific article

IL04 · slide 21 · The Vienna codifications

The examples are worth knowing by name and year, because they are the instruments the rest of the course cites: the Vienna Convention on Diplomatic Relations 1961, on Consular Relations 1963, on the Law of Treaties 1969, on Succession of States in respect of Treaties 1978, on Succession of States in respect of State Property, Archives and Debts 1983, and the UN Convention on Jurisdictional Immunities of States and Their Property 2004.

5. ILC Articles on State Responsibility (ARSIWA, 2001)

Article texts: legal.un.org (ILC), draft articles 2001

No specific article

IL01 · slide 18 · Six features of PIL (outline of part III)

This slide is the signpost for the whole of part III: state sovereignty, the territory of a state, sovereign equality, non-intervention in internal affairs, consent and sources, and state responsibility.

IL12 · slide 3 · Responsibility versus liability

Responsibility then divides by subject: state responsibility, responsibility of international organizations, and individual criminal responsibility.

IL12 · slide 4 · The character of state responsibility

Is state responsibility criminal or civil in character, and what follows?

IL12 · slide 5 · Where the rules come from

Customary international law, developed over decades out of general principles in international jurisprudence, and codified by the ILC in the Articles on the Responsibility of States for Internationally Wrongful Acts of 2001.

IL12 · slide 5 · Where the rules come from

What is the legal status of the ILC Articles on State Responsibility?

IL12 · slide 6 · The structure and the elements

What must be shown for state responsibility to arise?

IL12 · slide 6 · The structure and the elements

Damage is not a general requirement of state responsibility; the breach of the obligation plus attribution suffices.

6. Montevideo Convention on the Rights and Duties of States (1933)

Article texts: jus.uio.no, text of the Montevideo Convention

Art. 1

The state as a person of international law should possess the following qualifications: a. a permanent population; b. a defined territory; c. government; and d. capacity to enter into relations with the other states.

IL06 · slide 3 · The three-elements doctrine

What makes a state is answered by the three-elements doctrine and by Article 1 of the Montevideo Convention of 1933: a permanent population, a defined territory, and a government.

IL06 · slide 3 · The three-elements doctrine

What are the elements of statehood under Article 1 Montevideo Convention, and which one is disputed?

7. UN Convention on the Law of the Sea (UNCLOS, 1982)

No specific article

IL02 · slide 39 · Objective and subjective entry into force

The table compares four treaties — VCLT, UNCLOS, UN-CAT and the Paris Agreement — along the same rows, and its purpose is one distinction.

8. International Covenant on Civil and Political Rights (ICCPR)

No specific article

IL11 · slide 7 · Sources I: the Declaration and the Covenants

The Covenant on Civil and Political Rights carries the classic defensive rights: life, prohibition of torture and slavery, liberty of the person, private life, religion, fair trial and due process, and political rights of expression, assembly and demonstration.

IL11 · slide 10 · Enforcement: judicial, quasi-judicial, political

QUASI-JUDICIAL enforcement runs through treaty bodies such as the Human Rights Committee under the ICCPR, again on individual or state complaints.

9. International Covenant on Economic, Social and Cultural Rights (ICESCR)

No specific article

IL11 · slide 7 · Sources I: the Declaration and the Covenants

The Covenant on Economic, Social and Cultural Rights carries rights to work, education, social security and health care, and cultural services.

10. Universal Declaration of Human Rights (1948)

No specific article

IL01 · slide 27 · Soft law

Soft law means non-binding resolutions of international organizations and political declarations; the slide illustrates it with the Universal Declaration of Human Rights of 1948, shown as a photograph of Eleanor Roosevelt holding the printed text and as the cover of the document.

IL11 · slide 7 · Sources I: the Declaration and the Covenants

The Universal Declaration of 1948 is a General Assembly resolution and per se not legally binding — with two arguments for binding force anyway: that it has become customary law, and that it is an authentic interpretation of the Charter.

11. European Convention on Human Rights (ECHR)

Article texts: echr.coe.int, text of the Convention

Art. 6(3)

3. Everyone charged with a criminal offence has the following minimum rights: (a) to be informed promptly, in a language which he understands and in detail, of the nature and cause of the accusation against him; (b) to have adequate time and facilities for the preparation of his defence; (c) to defend himself in person or through legal assistance of his own choosing or, if he has not sufficient means to pay for legal assistance, to be given it free when the interests of justice so require; (d) to examine or have examined witnesses against him and to obtain the attendance and examination of witnesses on his behalf under the same conditions as witnesses against him; (e) to have the free assistance of an interpreter if he cannot understand or speak the language used in court. Signature and ratification This Protocol shall be open for signature by the members of the Council of Europe, who are the signatories of the Convention; it shall be ratified at the same time as or after the ratification of the Convention. It shall enter into force after the deposit of ten instruments of ratification. As regards any signatory ratifying subsequently, the Protocol shall enter into force at the date of the deposit of its instrument of ratification. The instruments of ratification shall be deposited with the Secretary General of the Council of Europe, who will notify all members of the names of those who have ratified. Done at Paris on The 20Th Day of march 1952, in English and French, both text [...]

IL05 · slide 6 · General principles in EU law

Article 6(3) TEU provides that fundamental rights, as guaranteed by the ECHR and as they result from the constitutional traditions common to the Member States, constitute general principles of Union law.

IL05 · slide 6 · General principles in EU law

Art 340(2) TFEU for the non-contractual liability of the Union, by reference to principles common to the laws of the Member States; and Art 6(3) TEU, making fundamental rights from the ECHR and common constitutional traditions general principles of Union law.

Art. 32

Jurisdiction of the Court 1. The jurisdiction of the Court shall extend to all matters concerning the interpretation and application of the Convention and the Protocols thereto which are referred to it as provided in Articles 33, 34, 46 and 47. 2. In the event of dispute as to whether the Court has jurisdiction, the Court shall decide.

IL02 · slide 43 · Who interprets a treaty

Two examples on the slide: Article 32 ECHR gives the European Court of Human Rights jurisdiction over all matters concerning interpretation and application of the Convention, and Article 1 of the Optional Protocol to the Vienna Convention on Consular Relations puts such disputes under the compulsory jurisdiction of the ICJ.

IL02 · slide 43 · Who interprets a treaty

An authoritative interpreter exists only where the treaty creates one, such as the ECtHR under Article 32 ECHR or the ICJ under the Optional Protocol to the VCCR.

No specific article

IL11 · slide 8 · Sources II: specific and regional treaties

The regional conventions: the European Convention on Human Rights 1950, the American Convention 1969, the African Charter on Human and Peoples' Rights 1981.

IL11 · slide 8 · Sources II: specific and regional treaties

The European Convention on Human Rights 1950, the American Convention on Human Rights 1969 and the African Charter on Human and Peoples' Rights 1981.

IL12 · slide 11 · Who may invoke responsibility, and how

And for obligations protecting collective interests, obligations ERGA OMNES, every other state to which the obligation is owed may invoke it; human rights are the example, and the inter-state complaint under the ECHR the mechanism.

IL12 · slide 11 · Who may invoke responsibility, and how

Human rights are the standard example, and the inter-state complaint under the ECHR is the procedural form.

12. American Convention on Human Rights

No specific article

IL11 · slide 8 · Sources II: specific and regional treaties

The regional conventions: the European Convention on Human Rights 1950, the American Convention 1969, the African Charter on Human and Peoples' Rights 1981.

IL11 · slide 8 · Sources II: specific and regional treaties

The European Convention on Human Rights 1950, the American Convention on Human Rights 1969 and the African Charter on Human and Peoples' Rights 1981.

13. African Charter on Human and Peoples' Rights

No specific article

IL11 · slide 8 · Sources II: specific and regional treaties

The regional conventions: the European Convention on Human Rights 1950, the American Convention 1969, the African Charter on Human and Peoples' Rights 1981.

IL11 · slide 8 · Sources II: specific and regional treaties

The European Convention on Human Rights 1950, the American Convention on Human Rights 1969 and the African Charter on Human and Peoples' Rights 1981.

14. Convention against Torture (UN-CAT)

No specific article

IL02 · slide 39 · Objective and subjective entry into force

The table compares four treaties — VCLT, UNCLOS, UN-CAT and the Paris Agreement — along the same rows, and its purpose is one distinction.

15. Geneva Conventions and Additional Protocols

No specific article

IL01 · slide 12 · Solferino 1859

In the history of the discipline Solferino is known as the event out of which the Red Cross and the first Geneva Convention emerged, that is the beginning of humanitarian law, which is why it usually appears in a historical overview.

IL06 · slide 36 · The ICRC

Its monitoring functions in armed conflict under the 1949 Geneva Conventions and the 1977 Additional Protocols give it a LIMITED personality under international law: a private Swiss association that states have entrusted with functions under treaties.

IL06 · slide 36 · The ICRC

From the functions states conferred on it by treaty — monitoring under the 1949 Geneva Conventions and the 1977 Additional Protocols — not from its form, which is an association under Swiss law.

16. Rome Statute of the International Criminal Court

Article texts: treaties.un.org, UNTS vol. 2187

Art. 86

General obligation to cooperate States Parties shall, in accordance with the provisions of this Statute, cooperate fully with the Court in its investigation and prosecution of crimes within the jurisdiction of the Court.

IL02 · slide 17 · Self-executing and non-self-executing treaties

The slide illustrates the non-self-executing type with Article 86 of the Rome Statute: 'States Parties shall ... cooperate fully with the Court in its investigation and prosecution of crimes' — an obligation addressed to the state, which must set up its own procedures before anything happens in a domestic courtroom.

IL02 · slide 17 · Self-executing and non-self-executing treaties

If it merely obliges the state to achieve something and needs implementing legislation first — like Article 86 Rome Statute's duty to cooperate — it is non-self-executing.

No specific article

IL13 · slide 3 · International criminal responsibility

Courts: the post-war military tribunals (Nuremberg, Tokyo); the ad hoc tribunals (ICTY 1993-2017, ICTR 1994-2018); and the permanent ICC (Rome Statute 1998, in force 2002), with hybrid courts alongside.

IL13 · slide 6 · The International Criminal Court

Rome Statute 1998, in force 2002, seat in The Hague.

17. Treaty on the Non-Proliferation of Nuclear Weapons (NPT)

No specific article

IL08 · slide 22 · Vienna organizations I: UNHCR and IAEA

The IAEA, the International Atomic Energy Agency, founded in 1957 and in Vienna from the start; its tasks are the peaceful use of nuclear energy and monitoring the Nuclear Non-Proliferation Treaty since 1970.

IL08 · slide 22 · Vienna organizations I: UNHCR and IAEA

It promotes the peaceful use of nuclear energy and has monitored compliance with the Nuclear Non-Proliferation Treaty since 1970.

18. Comprehensive Nuclear-Test-Ban Treaty (CTBT)

No specific article

IL08 · slide 23 · Vienna organizations II: CTBTO and OSCE

The CTBTO Preparatory Commission, in Vienna since 1997, works to obtain ratifications and signatures of the Comprehensive Nuclear-Test-Ban Treaty of 1996 and operates a global monitoring system of seismic, hydroacoustic and infrasound measurements — note that it is still a PREPARATORY commission, because the treaty has not entered into force.

IL08 · slide 23 · Vienna organizations II: CTBTO and OSCE

Because the Comprehensive Nuclear-Test-Ban Treaty of 1996 has not entered into force; the Commission works to obtain the necessary signatures and ratifications while already running the global monitoring system.

19. Paris Agreement (2015)

Article texts: unfccc.int, Paris Agreement (official publication)

Art. 21

1. This Agreement shall enter into force on the thirtieth day after the date on which at least 55 Parties to the Convention accounting in total for at least an estimated 55 per cent of the total global greenhouse gas emissions have deposited their instruments of ratification, acceptance, approval or accession. 2. Solely for the limited purpose of paragraph 1 of this Article, "total global greenhouse gas emissions" means the most up-to-date amount communicated on or before the date of adoption of this Agreement by the Parties to the Convention. 3. For each State or regional economic integration organization that ratifies, accepts or approves this Agreement or accedes thereto after the conditions set out in paragraph 1 of this Article for entry into force have been fulfilled, this Agreement shall enter into force on the thirtieth day after the date of deposit by such State or regional economic integration organization of its instrument of ratification, acceptance, approval or accession. 4. For the purposes of paragraph 1 of this Article, any instrument deposited by a regional economic integration organization shall not be counted as additional to those deposited by its member States.

IL02 · slide 40 · A double threshold: the Paris Agreement

Article 21 of the Paris Agreement shows that the threshold need not be a bare headcount.

No specific article

IL02 · slide 39 · Objective and subjective entry into force

The table compares four treaties — VCLT, UNCLOS, UN-CAT and the Paris Agreement — along the same rows, and its purpose is one distinction.

IL02 · slide 40 · A double threshold: the Paris Agreement

Why does the Paris Agreement's entry-into-force clause require 55 per cent of emissions and not only 55 parties?

20. Liability Convention (space, 1972)

No specific article

IL12 · slide 3 · Responsibility versus liability

Liability produces civil consequences, often absolute, as under the Liability Convention in space law, and the liable party may be an individual or a state.

IL13 · slide 8 · How liability regimes are built

The model provision is Article II of the Liability Convention in space law: a launching state shall be ABSOLUTELY liable to pay compensation for damage caused by its space object on the surface of the earth or to aircraft in flight.

IL13 · slide 8 · How liability regimes are built

State the rule of Article II of the Liability Convention.

21. Friendly Relations Declaration (GA Res. 2625)

No specific article

IL04 · slide 16 · Nicaragua: opinio iuris from General Assembly resolutions

The Court said it had to be satisfied that an opinio iuris existed as to the binding character of the abstention from the threat or use of force, and that this opinio iuris may — though with all due caution — be deduced from the attitude of the parties and of states towards certain General Assembly resolutions, particularly Resolution 2625 (XXV), the Friendly Relations Declaration.

IL04 · slide 16 · Nicaragua: opinio iuris from General Assembly resolutions

In Nicaragua the ICJ deduced opinio iuris on the prohibition of force from attitudes towards Resolution 2625 — with, as the Court put it, all due caution.

IL10 · slide 16 · The prohibition of intervention

The Friendly Relations Declaration of 1970 states it in three movements.

22. Austrian State Treaty (1955)

No specific article

IL02 · slide 7 · What a treaty looks like, across three millennia

A picture slide with five documents: the Treaty of Osnabrück (Peace of Westphalia) 1648, the Austrian State Treaty 1955, the Egyptian-Hittite peace treaty of 1296 BC carved into a temple wall, and the Treaty of Lisbon 2007 on an EU flag.

23. Unilateral declarations (Ihlen, Maroua, Yaoundé II, Claims Settlement)

No specific article

IL02 · slide 25 · Cameroon v. Nigeria: the holding

The Court noted that the two Heads of State had for years resolved boundary difficulties through person-to-person agreements, including Yaoundé II and Maroua, and concluded in paragraph 268 that the Maroua Declaration and the Yaoundé II Declaration must be considered binding and as establishing a legal obligation on Nigeria.

IL02 · slide 25 · Cameroon v. Nigeria: the holding

Nigeria the Maroua and Yaoundé II Declarations were held binding and to establish a legal obligation.

IL05 · slide 5 · General principles in an arbitration clause

Article V of the Claims Settlement Declaration of Algiers of 19 January 1981, which created the Iran-United States Claims Tribunal, directs the tribunal to decide all cases on the basis of respect for law, applying such choice of law rules and principles of commercial and international law as it determines to be applicable, taking account of usages of trade, contract provisions and changed circumstances.

IL05 · slide 18 · The Ihlen Declaration

Why was the Ihlen Declaration binding on Norway although it was a single oral remark?

IL05 · slide 20 · Form is not decisive: Nuclear Tests

Read together with the Ihlen Declaration, this is the rule that a press conference can bind a state — which is why Guiding Principle 7 then insists on clarity and restrictive interpretation.

24. GATT / WTO agreements

No specific article

IL05 · slide 26 · The same problem in the WTO

Japan – Taxes on Alcoholic Beverages says it for trade law: adopted panel reports are an important part of the GATT acquis, are often considered by subsequent panels, create legitimate expectations among WTO Members and should be taken into account where relevant — however, they are not binding except for resolving the particular dispute between the parties.

IL07 · slide 2 · What an international organization is

The sentence closes by noting that members may include entities other than states — which is how the EU can be a member of the WTO.

IL07 · slide 5 · Where the organizations sit

New York holds the UN itself with UNICEF, UNFPA and UNDP; Washington the World Bank Group and the IMF; Geneva the ILO, WTO, WHO, ITU, WMO, WIPO, UNCTAD and UNHCR; Vienna the IAEA, UNIDO and UNODC; The Hague the ICJ; Rome the FAO, IFAD and WFP; plus Montreal (ICAO), Paris (UNESCO), Bern (UPU), London (IMO), Madrid (World Tourism Organization) and Nairobi (UNEP).

IL07 · slide 19 · One state one vote, and its exceptions

A third route avoids voting altogether: the consensus procedure used by the OSCE and the WTO.

IL07 · slide 19 · One state one vote, and its exceptions

The veto of the five permanent members of the Security Council; weighted voting by capital contribution (IMF, World Bank) or population (Council of the EU); and consensus procedures that avoid voting altogether (OSCE, WTO).

IL08 · slide 14 · ECOSOC and the UN family

Beside them stand the 'related organizations' — the WTO, the IAEA, the CTBTO and the OPCW — which are linked to the UN but are not specialized agencies.

IL08 · slide 14 · ECOSOC and the UN family

The WTO, IAEA, CTBTO and OPCW are related organizations, linked to the UN without being specialized agencies.

IL08 · slide 30 · Review: voting and decision-making

Unanimity (EU common foreign and security policy); simple majority; qualified majority such as two thirds (UN GA important questions); weighted voting (IMF, World Bank); and consensus without a vote (OSCE, WTO).

25. ILC Draft Articles (further texts)

Art. 1

IL06 · slide 7 · Diplomatic protection defined

Article 1 of the ILC Draft Articles gives the precise form: the invocation by a state, through diplomatic action or other means of peaceful settlement, of the responsibility of another state for an injury caused by an internationally wrongful act to a natural or legal person who is its national, with a view to implementing that responsibility.

Art. 15

IL06 · slide 12 · When local remedies need not be exhausted

Article 15 of the Draft Articles lists five exceptions: (a) there are no reasonably available remedies providing effective redress, or no reasonable possibility of such redress; (b) there is undue delay attributable to the responsible state; (c) there was no relevant connection between the injured person and that state at the date of injury; (d) the injured person is manifestly precluded from pursuing local remedies; or (e) the responsible state has waived the requirement.

IL06 · slide 12 · When local remedies need not be exhausted

No reasonably available remedy offering effective redress; undue delay attributable to the respondent state; no relevant connection between the injured person and that state at the date of injury; the person is manifestly

precluded from pursuing remedies; or the state has waived the requirement (Art 15 Draft Articles).

No specific article

IL07 · slide 17 · The other three kinds of organ

Note where the ILC sits: it is an expert organ of the UN, which is why its draft articles are authoritative without being binding.